

705 S.W.2d 910
Supreme Court of Kentucky.

Ellen B. EWING, Judge and
Charlotte Ann May, Appellants,

v.

Robert Benjamin MAY, Jr., Appellee.

No. 85-SC-310-MR

|

Jan. 16, 1986.

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Rehearing Denied April 10, 1986.

Synopsis

Former wife sought increase in child support and Jefferson Circuit Court allowed limited discovery of noncustodial parent's spouse's financial resources. Noncustodial parent obtained writ of prohibition from the Court of Appeals and former wife appealed. The Supreme Court, Wintersheimer, J., held that: (1) the writ of prohibition was inappropriate remedy, and (2) limited discovery was proper for noncustodial parent's spouse's financial resources.

Vacated; circuit court order reinstated.

Stephens, C.J., filed dissenting opinion in which Gant and Stephenson, JJ., joined.

West Headnotes (12)

[1] Prohibition 🔑 Adequacy of remedy by appeal or writ of error

314 Prohibition

314I Nature and Grounds

314k3 Existence and Adequacy of Other Remedies

314k3(5) Adequacy of remedy by appeal or writ of error

Writ of prohibition was not appropriate to prevent discovery of noncustodial parent's spouse's financial resources in proceeding seeking increase in child support, where there was no manifest injustice or irreparable injury

which would have resulted if normal appellate procedures had been followed.

2 Cases that cite this headnote

[2] Prohibition 🔑 Nature and scope of remedy

Prohibition 🔑 Specific acts

314 Prohibition

314I Nature and Grounds

314k1 Nature and scope of remedy

314 Prohibition

314I Nature and Grounds

314k5 Acts and Proceedings of Courts, Judges, and Judicial Officers

314k5(2) Specific acts

Writ of prohibition is extraordinary remedy and is not appropriate to prevent discovery where circuit judge has not done anything to usurp or abuse her authority so as to require appellate court to step in to prevent injustice.

[3] Divorce 🔑 Discovery

134 Divorce

134IV Proceedings

134IV(H) Incidental Proceedings

134k85 Discovery

Custodial parent seeking increase in child support may obtain limited and reasonable discovery of other parent's spouse for purposes of determining financial needs and resources of noncustodial parent pursuant to [KRS 403.210\(5\)](#).

1 Case that cites this headnote

[4] Pretrial Procedure 🔑 Probable admissibility at trial

307A Pretrial Procedure

307AII Depositions and Discovery

307AII(A) Discovery in General

307Ak32 Probable admissibility at trial

It is not necessary that information sought in discovery be admissible as competent evidence at trial so long as it appears reasonably calculated to lead to discovery of admissible evidence. [Rules Civ.Proc., Rule 26.02\(1\)](#).

3 Cases that cite this headnote

[5] Privileged Communications and Confidentiality 🔑 **Types of privileges**

311H Privileged Communications and Confidentiality

311HI In General

311Hk6 Types of privileges
(Formerly 307Ak33)

Privileged matters, for purposes of discovery, should be limited to communications and other matters which are excluded by Constitution, statute or rules. [Rules Civ.Proc., Rule 26.02\(1\)](#).

[6] Privileged Communications and Confidentiality 🔑 **Observations of acts and conduct; independent knowledge**

Privileged Communications and Confidentiality 🔑 **Communications through or in presence or hearing of others; communications with third parties**

311H Privileged Communications and Confidentiality

311HII Family Privileges

311HII(B) Spousal Privilege

311Hk71 Observations of acts and conduct; independent knowledge
(Formerly 410k193)

311H Privileged Communications and Confidentiality

311HII Family Privileges

311HII(B) Spousal Privilege

311Hk81 Communications through or in presence or hearing of others; communications with third parties
(Formerly 410k193)

Acts committed by one spouse in presence of the other and third person are not protected by husband and wife privilege.  [KRS 421.210\(1\)](#).

1 Case that cites this headnote

[7] Privileged Communications and Confidentiality 🔑 **Privileged Communications and Confidentiality**

311H Privileged Communications and Confidentiality

311HI In General

311Hk1 In general
(Formerly 307Ak33)

In discovery situations where privileged facts are interwoven with facts that are conceivably privileged, determining factor is availability of nonprivileged facts from other sources, and where no other source exists balance must be struck in favor of distilling, if possible, nonprivileged facts from documents. [Const. § 11](#);

 [KRS 421.210\(1, 4\)](#).

[8] Pretrial Procedure 🔑 **Objections and protective orders**

307A Pretrial Procedure

307AII Depositions and Discovery

307AII(A) Discovery in General

307Ak41 Objections and protective orders

In order to prevent abuse of discovery, trial court has full authority to issue protective order. [Rules Civ.Proc., Rule 26.02\(1\)](#).

4 Cases that cite this headnote

[9] Pretrial Procedure 🔑 **Objections and protective orders**

307A Pretrial Procedure

307AII Depositions and Discovery

307AII(A) Discovery in General

307Ak41 Objections and protective orders

Protective order is proper where party requires protection from annoyance, embarrassment, oppression, or undue expense or burden. [Rules Civ.Proc., Rule 26.02\(1\)](#).

5 Cases that cite this headnote

[10] Divorce 🔑 **Discovery**

134 Divorce

134IV Proceedings

134IV(H) Incidental Proceedings

134k85 Discovery

Limited discovery may be valid if it is relevant to amount of child support under [KRS 403.210\(5\)](#), though ex-spouse should not be allowed wholesale fishing license as to financial resources of new spouse.

[11] Child Support **Income or wealth of cohabitant, paramour, or new spouse**

76E Child Support

76EIII Factors Considered

76EIII(B) Factors Relating to Custodians and Obligors

76Ek97 Income or wealth of cohabitant, paramour, or new spouse

(Formerly 134k306)

Availability of new spouse's income as it affects financial needs of noncustodial spouse is proper consideration when balancing needs of noncustodial spouse and needs of children, though new spouse has no legal obligation to support children of other spouse. [KRS 403.210\(5\)](#).

[12] Divorce **Discovery**

134 Divorce

134IV Proceedings

134IV(H) Incidental Proceedings

134k85 Discovery

Limited discovery of financial resources of noncustodial parent's new spouse's financial resources was proper where it was calculated to lead to possible introduction of admissible evidence as to resources and needs of noncustodial parent. [KRS 403.210\(5\)](#).

1 Case that cites this headnote

Attorneys and Law Firms

***911** F. Larkin Fore, Louisville, for appellants.

Fred Simon, Louisville, for appellee.

Opinion

WINTERSHEIMER, Justice.

This appeal is from an order of the Court of Appeals prohibiting enforcement of a discovery order issued by the circuit court.

The questions presented are whether a writ of prohibition was an appropriate remedy in this case and whether a

custodial parent seeking an increase in child support may obtain discovery, as limited by the trial court's order, of the noncustodial parent's spouse for the purpose of determining the financial needs in accordance with [KRS 403.210\(5\)](#).

The original decree was entered January 7, 1981 and was modified on March 4, 1983. The order required the father to pay his former wife \$600 per month for the support of three minor children. In addition to obtaining the financial data from the noncustodial parent, certain financial information was subpoenaed from the noncustodial parent's present wife. After a hearing before the circuit court it was determined ***912** that certain of the data regarding the present spouse of the father was discoverable. The trial judge made no ruling on the admissibility of the evidence but determined that such evidence was discoverable as it could lead to relevant evidence contemplated by [Civil Rule 26.02\(1\)](#). Robert May obtained a writ of prohibition against the production of his current spouse's financial records.

The order of the Court of Appeals is set aside because the writ of prohibition is inappropriate. There is a right of appeal and no great injustice or irreparable injury would result if the normal appellate procedures were followed. A custodial parent seeking an increase in child support may obtain discovery of the other parent's spouse as limited by the trial court's order for purposes of determining the financial needs and resources of the noncustodial parent pursuant to [KRS 403.210\(5\)](#).

I

[1] In this case, the writ of prohibition is not appropriate because there is no manifest injustice or irreparable injury which would result if the normal appellate procedures were followed. There is an adequate remedy at law by appeal. Prohibition is not a substitute for appeal. See *Schaetzley v. Wright*, Ky., 271 S.W.2d 885 (1954).

[2] Here the circuit judge has not done anything to usurp or abuse her authority so as to require the appellate court to step in to prevent an injustice. The relief of prohibition is an extraordinary remedy. The relief sought here can be achieved if found proper through ordinary appellate channels.

II

[3] A custodial parent seeking an increase in child support may obtain limited and reasonable discovery of the other parent's spouse for the purpose of determining the financial needs and resources of the noncustodial parent pursuant to [KRS 403.210\(5\)](#).

[4] [CR 26.02](#) provides that the parties may obtain discovery of any matter not privileged which is relevant to the subject matter in the pending action. Relevancy is more loosely construed for purposes of discovery than for trial. It is not necessary that the information sought be admissible as competent evidence at trial. Even though it might be otherwise incompetent and inadmissible, information may be elicited if it appears reasonably calculated to lead to the discovery of admissible evidence. It is allowable if there is a reasonable possibility that the information sought may provide a lead to other evidence that will be admissible. For an additional discussion see Bertelsman and Philipps, *Kentucky Practice*, (4th ed.), [CR 26.02](#) § 4.

[5] The rule exempts privileged matters as a subject of an examination. Such privileged matters should be limited to communications and other matters which are excluded by the constitution, the statute or our rules. This would include the privilege from self-incrimination under [Section 11 of the Kentucky Constitution](#) and [KRS 421.210\(1\) and \(4\)](#). Witnesses are not required to testify in regard to (1) confidential communications between husband and wife; (2) communications between attorney and client and (3) confessions made to a clergyman.

[6] Traditionally the law has assumed that confidentiality in the private affairs of husband and wife is essential to the health of the marital relationship. [KRS 421.210\(1\)](#) has codified such a privilege in both civil and criminal matters. It protects against the disclosure of any communication made during the existence of the marital relationship as long as that communication was made in confidence. An act committed by one spouse in the presence of the other and a third person is not protected by the husband and wife privilege. See *York v. Commonwealth*, Ky., 395 S.W.2d 781 (1965).

***913** Testimony from a wife about the earnings of her deceased husband was found to be outside the coverage of marital privilege because it does not appear that this knowledge was gained by reason of the marital relation, and there are conceivably many other means by which the

information could have been obtained. [Kennedy Transfer Co. v. Greenfield's Admx.](#), 248 Ky. 708, 59 S.W.2d 978 (1933).

[7] The right of privacy must be balanced against a critical need for information. In situations where privileged facts are interwoven with facts that are conceivably privileged, the determining factor is the availability of the nonprivileged facts from other sources, and where no other source exists the balance must be struck in favor of distilling, if possible, nonprivileged facts from documents. The trial court must allow with care and sound discretion reasonable discovery of the resources of the spouse of the noncustodial parent as they apply to the noncustodial parent's financial needs. All of this must be then again balanced against the needs and best interests of the children of the marriage.

[8] [9] In order to prevent the abuse of discovery, the trial court has full authority to issue a protective order. See [CR 26.03\(1\)](#); *Hoffman v. Dow Chemical Co.*, Ky., 413 S.W.2d 332 (1967). A protective order is proper where a party requires protection from annoyance, embarrassment, oppression, or undue expense or burden. The trial judge appears to have appropriately limited discovery in this case.

[10] [11] Obviously an ex-spouse should not be allowed a wholesale fishing license as to the financial resources of a new spouse. Here the trial judge limited the scope of inquiry. A limited inquiry may be valid if it is relevant to the amount of child support under [KRS 403.210\(5\)](#). That statute permits the trial judge to consider among other things the financial resources and needs of the noncustodial parent. In many cases, remarriage may substantially affect the financial resources and needs of the person marrying. The new spouse has no legal obligation to support the children of the other spouse. However, the availability of his or her income as it affects the financial needs of the noncustodial spouse is a proper consideration when balancing the needs of the noncustodial spouse and the needs of the children.

[12] Here the limited discovery ordered by the trial judge was calculated to lead to the possible introduction of admissible evidence—the resources and needs of the noncustodial parent. There is no practical way to test the credibility of the appellee's testimony or to impeach his evidence presented regarding financial resources available from a new spouse without discovery.

Discovery may be taken directly from the new spouse as to the limited financial data in the trial court's order in the event

the husband is unable or unwilling to produce the relevant financial information.

The order of the Court of Appeals granting the writ of prohibition is vacated and set aside. The order of the circuit court is reinstated.

AKER, LEIBSON, VANCE and WINTERSHEIMER, JJ., concur.

STEPHENS, C.J., dissents by separate opinion.

GANT and STEPHENSON, JJ., join in this dissent.

STEPHENS, Chief Justice, dissenting.

I respectfully dissent. The writ of prohibition issued by the Court of Appeals properly prevented a great and irreparable injury. The Court of Appeals stepped in to cure the trial court's abuse of discretion in ordering the discovery of financial resources of the noncustodial parent's new spouse.

The assets of a noncustodial parent's spouse can not legally be considered financial *914 resources of the noncustodial parent. A husband owns no interest in his wife's property, even that acquired after marriage. During the marriage the wife shall hold and own all her estate to her separate and exclusive use, and free from the debts, liabilities or control of her husband. [KRS 404.010](#). Thus, the resources of a new spouse have no bearing on the statutorily mandated factor in determining child support of the financial resources and needs of the noncustodial parent. [KRS 403.210](#).

To consider the new spouse's finances as a change of circumstances for the noncustodial parent, though she clearly has no obligation to support children of her husband's prior marriage, is to cause her to indirectly be liable for those children's support.

GANT and STEPHENSON, JJ., join in this dissent.

All Citations

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Negative Treatment

Negative Citing References (1)

The KeyCited document has been negatively referenced by the following events or decisions in other litigation or proceedings:

Treatment	Title	Date	Type	Depth	Headnote(s)
Called into Doubt by Statute as Stated in	1. Weiner v. Weiner  MOST NEGATIVE 2005 WL 1415436 , Ky.App. This is an appeal from an order entered by the Fayette Circuit Court, Family Division, increasing the child support obligation of appellant Andrew I. Weiner. For the reasons stated...	June 17, 2005	Case		1 3 12 S.W.2d

Citing References (27)

Treatment	Title	Date	Type	Depth	Headnote(s)
Discussed by	1. Riggs v. Schroering  822 S.W.2d 414, 415+ , Ky. Motorist brought action against tort-feasor's insurer alleging unfair claims settlement practices. Insurer sought to depose motorist's attorneys regarding existence of telephone...	Nov. 21, 1991	Case		1 S.W.2d
Called into Doubt by Statute as Stated in 	2. Weiner v. Weiner  2005 WL 1415436, *2+ , Ky.App. This is an appeal from an order entered by the Fayette Circuit Court, Family Division, increasing the child support obligation of appellant Andrew I. Weiner. For the reasons stated...	June 17, 2005	Case		1 3 12 S.W.2d
Cited by	 3. Richmond Health Facilities-Madison, LP v. Clouse 473 S.W.3d 79, 84 , Ky. TORTS — Discovery. Corporate financial information was relevant and discoverable in resident's estate's action against nursing home and home operator.	Oct. 29, 2015	Case		8 9 S.W.2d
Cited by	4. Kindred Healthcare, Inc. v. Peckler  2006 WL 1360282, *4+ , Ky. On December 15, 2003, Lucille Dean was admitted to the Danville Centre for Health and Rehabilitation ("Danville Centre") by Nona Sue Young, her attorney-in-fact and daughter. The...	May 18, 2006	Case		4 S.W.2d
Cited by	 5. Dickerson v. Com. 174 S.W.3d 451, 465 , Ky. CRIMINAL JUSTICE - Sex Offenses. Evidence of victim's emotional injury was relevant and admissible during sodomy trial.	Oct. 20, 2005	Case		6 S.W.2d
Cited by	6. Arnold v. Jewish Hospital & St. Mary's Healthcare, Inc. 2017 WL 729171, *2 , Ky.App. Appellants, Ida Arnold, in her individual capacity and as Administratrix of the Estate of Jerry Arnold, appeal from a judgment of the Jefferson Circuit Court following a jury trial...	Feb. 24, 2017	Case		4 S.W.2d
Cited by	7. Pauly v. Chang 498 S.W.3d 394, 408 , Ky.App. HEALTH — Malpractice. Patient's fault in causing his injuries that necessitated provision of medical treatment was not available defense to claim for medical malpractice.	Dec. 11, 2015	Case		4 S.W.2d
Mentioned by	8. Leslie-Johnson v. Eckerle 653 S.W.3d 588, 591 , Ky. HEALTH — Discovery. Discovery request for nine years of plaintiffs' social-media data was reasonable in medical-negligence action.	Sep. 22, 2022	Case		8 9 S.W.2d

Treatment	Title	Date	Type	Depth	Headnote(s)
Mentioned by	9. Key v. CitiMortgage, Inc. 686 S.W.3d 630, 635 , Ky.App. REAL PROPERTY — Mortgages and Deeds of Trust. Court acted within discretion in granting protective order to block notice of deposition in foreclosure action.	Sep. 01, 2023	Case		8 9 S.W.2d
Mentioned by	10. Capital One Bank (USA), N.A. v. McWaters 2021 WL 1584254, *7 , Ky.App. Capital One Bank (USA), N.A. ("Capital One"), appeals the summary judgment entered in favor of Donald and Cynthia McWaters (collectively "Appellees"), awarding them \$139,500.00 in...	Apr. 23, 2021	Case		8 9 S.W.2d
Mentioned by	11. Gruebel v. Gruebel 1987 WL 14302, *4 , Ohio App. 4 Dist. This is an appeal from a judgment entered by the Pickaway County Court of Common Pleas which granted Susan E. Gruebal, plaintiff below and appellee herein, a divorce from Robert...	July 20, 1987	Case		9 S.W.2d
—	12. KY KR CIRCUIT 50, KeyRules Kentucky Circuit Court, KY CIRCUIT Motion for Protective Order KeyRules Kentucky Circuit Court I. Applicable Rules 1. State rules a. Title and scope of rules. KY ST RCP Rule 1. b. Service and filing of pleadings and other papers. KY ST RCP Rule 5.01; KY ST RCP Rule 5.02; KY...	2026	Key Rules	—	—
—	13. Availability of mandamus or prohibition to compel or to prevent discovery proceedings 95 A.L.R.2d 1229 The present annotation deals with the question whether a writ of mandamus or writ of prohibition is available to compel or to prevent discovery proceedings under modern discovery...	1964	ALR	—	2 3 S.W.2d
—	14. Effect of knowledge of third person acquired by overhearing or seeing communication between husband and wife upon rule as to privileged communication 63 A.L.R. 107 The reported case for this annotation is Nash v. Fidelity-Phenix Fire Ins. Co., 106 W. Va. 672, 146 S.E. 726, 63 A.L.R. 101 (1929).	1929	ALR	—	6 S.W.2d
—	15. Attorney-Client Privilege: State Law Kentucky s 11:22, Protective orders Attorney-Client Privilege: State Law Kentucky Kentucky courts permit use of protective orders to preserve the confidentiality of communications which, although not within the scope of the attorney-client privilege, may...	2025	Other Secondary Source	—	—
—	16. Kentucky Divorce s 4:7, § 4:7. Postdecree discovery Discovery can be used, and should be used, in proper postdecree cases. Where an increase is sought in maintenance or child support, it is essential for the attorney seeking the...	2024	Other Secondary Source	—	1 3 12 S.W.2d

Treatment	Title	Date	Type	Depth	Headnote(s)
—	17. Kentucky Divorce s 21:4, § 21:4. Determination of amount Each case must necessarily stand on its own facts. The factors which should be considered are those set forth in KRS 403.200. As stated, the amount of the original award may or may...	2024	Other Secondary Source	—	3 11 12 S.W.2d
—	18. Kentucky Handbook Series, Products Liability Law APP B, Appendix B. Kentucky Rules of Evidence Legislative Research Commission Note (7-1-92): Although denominated "rules," the elements of the Kentucky Rules of Evidence were enacted as statutes by the Kentucky General...	2024	Other Secondary Source	—	—
—	19. Kentucky Practice, Civil Procedure Forms s 65:9, § 65:9. Response to request for production of documents—Form CR 34.02 demands that a party receiving a request for production respond to the request within 30 days. The response must either permit or specifically object to the request,...	2026	Other Secondary Source	—	9 S.W.2d
—	20. Kentucky Practice, Domestic Relations Laws s 8:19, Divorce practice—Discovery Discovery is an important tool in many divorce actions. Discovery is sometimes the only avenue to a complete financial picture. Each spouse is entitled to discover assets held...	2025	Other Secondary Source	—	—
—	21. Kentucky Practice, Rules of Civil Procedure Ann. R 26.01, Rule 26.01. Discovery methods (Amended by Order 2004-5, eff. 1-1-05; adopted eff. 10-1-71) Former CR 26.01 transferred to CR 30.01, eff. 10-1-71. Source: Former Fed. R. Civ. P. 26(a) (before 1993 and 2000...	2025	Other Secondary Source	—	1 S.W.2d
—	22. Kentucky Practice, Rules of Civil Procedure Ann. R 26.02, Rule 26.02. Scope of discovery (Amended by Order 2004-5, eff. 1-1-05; prior amendments eff. 1-1-78, 10-1-71; adopted eff. 7-1-53) Source: Former Fed. R. Civ. P. 26(b) (prior to 1993 and 2000 amendments to the...	2025	Other Secondary Source	—	12 S.W.2d
—	23. Kentucky Practice, Rules of Civil Procedure Ann. R 26.03, Rule 26.03. Protective orders (Amended by Order 2010-09, eff. 1-1-2011; prior amendment eff 10-1-1971; adopted eff. 7-1-1953) Source: Fed. R. Civ. P. 26(c). Rule 26.03 is substantially similar to Fed. R. Civ....	2025	Other Secondary Source	—	9 S.W.2d
—	24. Labor and Employment Law: Compliance and Litigation s 1:294, § 1:294. Discovery in general—Kentucky It is not necessary that information sought in discovery be admissible as competent evidence at trial so long as it appears reasonably calculated to lead to discovery of admissible...	2026	Other Secondary Source	—	4 S.W.2d

Treatment	Title	Date	Type	Depth	Headnote(s)
—	25. FAMILY LAW IN THE FIFTY STATES: AN OVERVIEW 20 Fam. L.Q. 439 , 559 C1-3Contents Introduction. 443 Part 1: Dissolving the Marriage Relationship. 460 I. GROUNDS FOR DIVORCE. 460 II. DURATIONAL RESIDENCY REQUIREMENTS. 465 III. ELIMINATION OF...	1987	Law Review	—	1 3 12 S.W.2d
—	26. TWENTY-FIRST CENTURY PILLOW-TALK: APPLICABILITY OF THE MARITAL COMMUNICATIONS PRIVILEGE TO ELECTRONIC MAIL 58 S.C. L. Rev. 275 , 316 I. Introduction. 276 II. The History of the Marital Communications Privilege. 277 III. Web-Based Electronic Mail. 283 A. Privacy Agreements. 283 B. Fourth Amendment Protection...	2006	Law Review	—	6 S.W.2d
—	27. LESSONS FROM THE NEW ENGLISH AND AUSTRALIAN CHILD SUPPORT SYSTEMS 29 Vand. J. Transnat'l L. 691 , 733 "[The parental support obligation] is so well secured by the strength of natural affection that it seldom [needs] to be enforced by human laws." In the last decade, both England...	1996	Law Review	—	11 S.W.2d

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Cited	 2. Kennedy Transfer Co. v. Greenfield's Adm'x 59 S.W.2d 978, Ky., 1933 Appeal from Circuit Court, Christian County. Suit by Charles F. Greenfield's ADministratrix against the Kennedy Transfer Company. Judgment for plaintiff, and defendant appeals....	Case			913
Cited	3. Schaetzley v. Wright 271 S.W.2d 885, Ky., 1954 Prohibition proceeding to determine whether judge was acting without jurisdiction or erroneously within his jurisdiction in proceeding for incorporation of city under statute...	Case			912
Cited	4. York v. Com. 395 S.W.2d 781, Ky., 1965 Defendant was convicted before the Circuit Court, Campbell County, Frederick M. Warren, J., of incest, and he appealed. The Court of Appeals, Waddill, C., held that permitting...	Case			912